



OLD REPUBLIC
National Title Insurance Company

COMMERCIAL
MECHANIC'S LIEN AND PERSONS IN POSSESSION
INDEMNITY AGREEMENT

NAME OF INSURED: BOXFORD TRAILS ASSOCIATION, INC.

PROPERTY IS LOCATED AT: HERRICK ROAD, BOXFORD, MASSACHUSETTS

The above named insured requests Old Republic National Title Insurance Company (hereinafter referred to as "OLD REPUBLIC") to issue its policy of title insurance without exception for and insuring against any loss arising from possible unfilled mechanic's and/or materialmen's liens or claims, and/or arising from the rights of tenants or parties in possession with respect to the above-referenced property. In consideration of such insurance, and in order to induce OLD REPUBLIC to provide such insurance, the undersigned (hereinafter referred to as "INDEMNITOR") agrees to and undertakes the following obligations:

1. INDEMNITOR hereby agrees to, and hereby does indemnify OLD REPUBLIC for any loss, cost or damage including attorneys fees resulting from any such mechanic's and/or materialmen's liens or from any such rights of tenants or parties in possession.
2. In the event that any lien, claim or action, as indemnified against hereinabove, is filed, recorded, made or commenced with respect to the above-referenced property, INDEMNITOR shall upon written demand cause such lien, claim or action to be removed, terminated, satisfied, released or otherwise disposed of in any form and manner satisfactory to OLD REPUBLIC.
3. If within ten (10) days after written demand, INDEMNITOR has failed to cause any lien, claim or action to be removed, terminated, satisfied, released or discharged, INDEMNITOR hereby agrees to reimburse or repay in full any reasonable costs and expenses incurred by OLD REPUBLIC as a result of any reasonable action taken by OLD REPUBLIC to extinguish such lien, claim or action.
4. The total liability INDEMNITOR assumes under this agreement shall not exceed the face amount of any title insurance policy issued in connection with the above-referenced property.
5. The INDEMNITOR hereby further swears and represents that there are no tenants or persons in possession other than those listed below.

None

6. Any notice required to be given to INDEMNITOR shall be deemed given if sent by certified or registered mail to INDEMNITOR at the following address, and if no address is listed, at the address of the property specified above: c/o Brian D. Bixby, Cuddy Bixby, One Financial Center, Boston, MA 02111 and
c/o Arthur W. Hughes, III, Robert Gray, One International Place, Boston, MA 02110

EXECUTED as a sealed instrument to all parties on this 7th Day of July, 19 94.

BY:

Name: Angela Ambrose
Title: Secretary

Witnessed by: Michael R. Becker
Name:

STATE: Massachusetts

COUNTY: Essex

Subscribed and sworn to before me on this 7th Day of July, 19 94.

Michael R. Becker
Notary Public:

My Commission Expires: 11/25/95



May 26, 1994

Nancy Merrill
Cross Road
Boxford, MA 01921

Re: Opinion of Value Land on Herrick Road,
Boxford, MA.

Dear Nancy:

Per your request, I visited the subject property on May 21, 1994 in order to obtain the necessary information to arrive at a fair market value.

GENERAL INFORMATION

The subject property according to the assessors' records has 20.70 acres. There are three (3) separate buildings, two are used for storage and bathroom facilities. The third building is a one room cottage. The land has a 15' right of way over the abutters land. The property has a cement pad for a dock. As the land stands it is not a buildable lot-there is not sufficient frontage for a building lot.

Assessment Taxes.... Municipal Services.... Zoning...1994
(Information Source ..Town of Boxford)

Item	Amount
Land	\$ 154,900
Dwelling	\$ 12,037
Total	\$ 166,937

Electricity provided by Massachusetts Electric. Water and sewerage are private. Trash collection is provided by the Town of Boxford.

Zoning: Residence-Agricultural District ..Assessors: Map 19..Lot 13 .

Deed Information: Recorded at the Essex South Registry of Deeds
Book-2842 Page-223

VERNON A. MARTIN, INC., REALTORS

5 Main Street • Topsfield, MA 01983-1803 • (508) 887-8573 FAX: (508) 887-9813

One of the Oldest and Largest Real Estate Firms serving Northeastern Massachusetts with offices in Amesbury, Beverly, Danvers, Georgetown, Gloucester, Haverhill, Ipswich, Newburyport, Salem, South Hamilton, Topsfield, and Relocation, New Construction, Condominium, and Commercial Investment Divisions.

Page 2

Based upon the data researched, it is my opinion that the Fair Market Value for the property is \$130,000-\$135,000. Although this property has over 14 Acres, the amount of upland only amounts to 3 Acres. The property does abut Four Mile Pond, however one cannot see the pond from the area of the lot where a house would be sited.

Enclosed will be the comparables used, a location map and bylaw information for the Residence-Agricultural District.

If there is any further information that you require, please do not hesitate to call.

Sincerely,

Virginia A. Havey

Virginia A. Havey, GRI

ENC.
VAH/pd



DISBURSEMENTS AUTHORIZATION

Property Address: Herrick Road, Boxford, MA

Sellers: Rebekah F. Taube (50% undivided interest) /
Estate of Minna Alpers (50% undivided interest)

Buyers: Boxford Trails Association, Inc.

The undersigned Buyer and Sellers hereby authorize Attorney Sheila R. Becker to make the following disbursements from the sale proceeds:

Rebekah F. Taube:	\$71,704.09
Estate of Minna Alpers:	\$71,704.09
Registry of Deeds:	\$904.80
Town of Boxford:	\$1,248.17
Sheila R. Becker:	25.00
Old Republic Title:	\$662.00
	<u>\$146,248.15</u>

Total Funds In: \$146,248.15 per settlement statement
Total Funds Out: \$146,248.15 per settlement statement

July 7, 1994

Buyer:
Boxford Trails Association, Inc.

By: Nancy R. Merrill Pres. STA
Nancy Merrill, Pres.
George Horner
George Horner, Treas.

Rebekah F. Taube

John F. DeCoff, Executor
Estate of Minna Alpers

Elliot Silverstein, Executor
Estate of Minna Alpers

All by this attorney
Arym Ambrose

COMPLIANCE AGREEMENT

Property Address: Herrick Road, Boxford, MA

Sellers: Rebekah F. Taube (50% undivided interest) /
Estate of Minna Alpers (50% undivided interest)

Buyers: Boxford Trails Association, Inc.

The undersigned Buyer and Sellers hereby agree to sign, execute, and/or re-sign and re-execute any and all closing documents to correct any and all errors or omissions in such documents.

July 7, 1994

Buyer:
Boxford Trails Association, Inc.

By: Nancy L. Merrill
Nancy Merrill, Pres.
George Horner
George Horner, Treas.

Rebekah F. Taube

John F. DeCoff, Executor
Estate of Minna Alpers

Elliot Silverstein, Executor
Estate of Minna Alpers

Attest: Amy Ambrose